

PART II
CLAREMONT CITY CODE

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated "The Claremont City Code," and may be so cited.

Charter reference—Codification of ordinances, § 22.

State law reference—Codification of ordinances, RSA 47:18.

Sec. 1-2. Definitions and rules of construction.

The following words, terms and phrases and rules of construction, when used in this Code shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Charter. The word "Charter" shall mean the Charter of the City of Claremont, New Hampshire, as amended.

City. The word "city" shall mean the City of Claremont, New Hampshire.

City boards, committees, commissions, officers and departments. Whenever reference is made to a board, committee, commission, officer or department, the same shall be construed as if followed by the words "of the City of Claremont, New Hampshire."

Code. The word "Code" shall mean the Claremont City Code.

State law reference—Similar provisions, RSA 21:35.

Computation of time. Whenever a notice is required to be given or an act to be done, a certain length of time before any proceeding shall be had, the day on which such notice is given, or such act is done, shall not be counted in computing the time, but the day on which such proceeding is to be had shall be counted. Saturdays, Sundays and holidays are to be counted.

Council. The word “council” shall mean the city council of Claremont, New Hampshire, as the governing body.

County. The word “county” shall mean the County of Sullivan, New Hampshire.

Gender. A word importing the masculine or feminine gender only shall extend and be applied to males and females and to firms, partnerships and corporations.

State law reference—Similar provisions, RSA 21:3.

Month. The word “month” shall mean a calendar month.

State law reference—Similar provisions, RSA 21:8.

Number. A word importing the singular number only may extend and be applied to several persons or things as well as to one (1) person or thing, and a word importing the plural number may extend and be applied to a single person or thing.

State law reference—Similar provisions, RSA 21:3.

Oath. The word “oath” shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words “swear” and “sworn” shall be equivalent to the words “affirm” and “affirmed.”

State law reference—Similar provisions, RSA 21:24.

Officer. Reference to any officer includes any person authorized by law to perform the duties of such office.

Person. The word “person” shall extend and be applied to associations, firms, partnerships, joint ventures, estates, trusts, syndicates, fiduciaries and bodies politic and corporate or any other legal entity as well as to individuals.

State law reference—Similar provisions, RSA 21:9.

Preceding, following. The words “preceding” and “following” mean next before and next after, respectively.

State law reference—Similar provisions, RSA 21:13.

RSA. The abbreviation “RSA” shall mean the latest edition or supplement of the New Hampshire Revised Statutes Annotated.

State. The words “the state” or “this state” shall be construed to mean the State of New Hampshire.

Tenant or occupant. The word “tenant” or “occupant,” applied to a building or land, shall include any person holding a written or oral lease of, or who occupies, the whole or a part of such building or land, either alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and present.

Written or in writing. The words “written” or “in writing” shall be construed to include any representation of words, letters or figures, whether by printing or otherwise.

Year. The word “year” shall mean a calendar year, except where otherwise provided.

State law reference—Similar provisions, RSA 21:8.

Sec. 1-3. Titles of sections.

The titles of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted and are of no legal affect.

Sec. 1-4. References and editor’s notes.

The references and editor’s notes appearing throughout the Code are not intended to have any legal effect, but are merely intended to assist the users of the Code.

Sec. 1-5. References to chapters or sections.

All references to chapters or sections are to the chapters and sections of this Code unless otherwise specified.

Sec. 1-6. Provisions considered as continuations of existing ordinances.

The provisions appearing in this Code, so far as they are the same as those of ordinances existing at the time of the effective date of this Code, shall be considered as continuations thereof and not as new enactments.

Sec. 1-7. Effect of repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for any offense committed under the ordinance repealed.

State law reference—Similar provisions, RSA 21:37, 21:38, 21:39.

Sec. 1-8. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following when not inconsistent with this Code:

- (1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code;
- (2) Any ordinance promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;
- (3) Any contract or obligation assumed by the city;
- (4) Any right or franchise granted by the city;
- (5) Any ordinance dedicating, naming, establishing, locating, opening, paving, widening, vacating, etc., any street or public way in the city;
- (6) Any ordinance establishing or prescribing grades for streets in the city;
- (7) Any appropriation ordinance or ordinances providing for the levy of taxes or for adopting an annual budget;
- (8) Any ordinance relating to local improvements and assessments therefor;
- (9) Any ordinance annexing territory to the city or discontinuing territory as a part of the city or amending the boundaries of the city;

- (10) Any ordinance regulating subdivision of land or dedicating or accepting any plat or subdivision in the city;
- (11) Any ordinance or resolution establishing or amending personnel rules or regulations;
- (12) Any ordinance or resolution prescribing any utility rates, charges or fees;
- (13) Any ordinance prescribing traffic regulations for specific streets, such as ordinances establishing speed limits or designating one-way streets, no parking areas, truck routes, stop intersections, intersections where traffic to be controlled by signals, etc.;
- (14) Any ordinance establishing or amending zoning or land use regulations or the zoning map or rezoning property;
- (15) Any ordinance calling elections or prescribing the manner of conducting the election in accordance with state law;
- (16) Any ordinance prescribing any fee or payment of money to the city for cemetery lots, licenses or any other fee or tax;
- (17) Any ordinance prescribing the number, classification, benefits or compensation of any city officers or employees, not inconsistent herewith;
- (18) Any ordinance which is temporary although general in effect;
- (19) Any ordinance which is special although permanent in effect;
- (20) Any ordinance containing any administrative provisions.

All such ordinances shall remain in effect and are on file in the city clerk's office.

Sec. 1-9. Amendments to Code.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code shall refer to the numbering system contained in this Code and shall be printed for inclusion herein. In the case of repealed chapters, sections and subsections or any part thereof, by subsequent ordinances, such repealed por-

tions may be excluded from the Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code of Ordinances and subsequent ordinances numbered or omitted are readopted as a new Code of Ordinances by the city council.

(b) Amendments to any of the provisions of this Code shall be made by amending such provisions by specific reference to the section number of this Code in the following language: "That section _____ of the Claremont City Code is hereby amended to read as follows:" The provisions shall then be set out in full as desired.

(c) In the event a new section not heretofore existing in the Code, is to be added, the following language shall be used: "That the Claremont City Code, is hereby amended by adding a section, to be numbered _____, which said section reads as follows:" The new section shall then be set out in full as desired.

(d) All sections, articles, chapters or provisions desired to be repealed must be specifically repealed by section, article or chapter number, as the case may be.

Sec. 1-10. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to embody them into a unified code. For example, the codifier may:

- (1) Organize the ordinance material into appropriate subdivisions;
- (2) Provide appropriate titles for sections and other subdivisions of the Code printed in the supplement, and make changes in titles;
- (3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;
- (4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code); and
- (5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but, in no case, shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

Sec. 1-11. Severability of parts of Code.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional by the valid judgment or decree of a court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs or sections of this Code.

Sec. 1-12. General penalty for violation of Code; continuing violations.

(a) Whenever in this Code any act is prohibited or is made or declared to be unlawful or whenever in this Code any act is required or the failure to do any act is declared to be unlawful, where no specific penalty is provided therefor, the violation of any such provision of this Code shall be punished by a fine of not more than one thousand dollars (\$1,000.00). Each day any violation of any provision of this Code shall continue shall constitute a separate offense.

(b) Whenever the state law requires a specific penalty for a violation of a provision in this Code, the state law penalty shall supercede the penalty in this section.

Cross reference—Miscellaneous offenses, Ch. 9.

State law reference—Penalty for violation of ordinances, RSA 47:19.